Can Even God Save the Court?

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At the start of each sitting of the U.S. Supreme Court, the participants and gallery hear this prayer: “God save the United States and this Honorable Court!” With court-packing in the air, one may ask: Does God think the Supreme Court is worth saving?

God’s opinion remains beyond reach, so we’ll fall back on the authority of Justices Amy Coney Barrett and Stephen Breyer, who both have worried aloud lately that the Supreme Court’s status may be falling fast in the American firmament.

“My goal today,” Justice Barrett said in a speech at Kentucky’s McConnell Center, “is to convince you that this court is not comprised of a bunch of partisan hacks.”

Delivering the Scalia Lecture at Harvard, the liberal Justice Breyer wondered whether Americans have come to see the justices as “a group of junior-league politicians.”

One may imagine with confidence that the last place Justice Breyer thought he would find himself is in the same political boat with Ms. Barrett.

In their remarks, Justices Breyer and Barrett are expressing what many serious Americans sense, that the political system is sliding off the rails. It’s obvious that many, if not most, Americans now think the Supreme Court is totally politicized, that contrary to Justice Barrett’s assertion, judges today look first for a result and then assemble precedential fig leaves to support that result—on abortion, gun rights, gender and the rest. Justice Breyer’s complaint against packing the court, described in his Scalia lecture, is that it would destroy, after 200 years, what’s left of the public’s habit of respect for the legitimacy of Supreme Court decisions.

In my view the court-packing posse is overwhelmingly about one thing—Roe v. Wade. That’s the lesson of the left’s meltdown over Texas’s anti-abortion law, giving private citizens a right of legal action against abortion providers.

Justice Breyer says, “It is wrong to think of the Court as another political institution.” But he surely must understand how that happened.

For example in 1969 the Supreme Court decided in the Tinker case that high school students wearing black armbands had a constitutional right to protest the Vietnam War.

Ever since, the courts have been in the business of calling balls and strikes on local school-discipline rules. Those decisions, like Roe v. Wade, extended the high court’s authority deeply into matters formerly reserved for smaller political jurisdictions and personal responsibility.

The Supreme Court’s willing dive into these matters came during a period begun in the 1960s when the broader culture was already eroding traditional authority, mores and values. For decades, politics, the culture and the courts have combined to spread a pandemic of doubt about our “system.”

Justices Breyer and Barrett share at least one opinion: The Court is in trouble.

[455 words]